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Case Number: 26STCP02253 Hearing Date: July 31, 2026 Dept: 509

Kathleen Jones v. Pension Assurance, LLP

PETITION TO CONFIRM ARBITRATION AWARD

MOVING PARTY: Petitioner Kathleen Jones

RESPONDING PARTY(S): Respondent Pension Assurance, LLP

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Petitioner Kathleen Jones (Petitioner) brings this action to confirm an arbitration award against Pension Assurance, LLP (Respondent) arising from Respondent's removal of Petitioner from the partnership. Petitioner attaches a final arbitration award issued by Hon. Elizabeth R. Feffer (Ret.) dated June 1, 2026.

On June 15, 2026, Petitioner filed this action. Respondent opposed.

TENTATIVE RULING:

Petitioner's Petition to Confirm Arbitration Award is GRANTED.

Petitioner is ordered to file and serve a [Proposed] Judgment within 15 days incorporating the Arbitrator's Award, and as consistent with this ruling.

Moving party to give notice, unless waived.

DISCUSSION:

Petition to Confirm Arbitration Award

A. Legal Standard

Any party to an arbitration may petition the court to confirm an arbitration award. (Code Civ. Pro. § 1285.) If a petition to confirm an arbitration award is duly served and filed, the court must confirm the award as made, unless the court corrects or vacates the award pursuant to a response to the petition or a petition to correct or vacate the award. (Code Civ. Pro. § 1286; *Valsan Partners Limited Partnership v. Calcor Space Facility, Inc.* (1994) 25 Cal.App.4th 809, 818 [no authority to alter terms of award absent petition to correct].)

A petition to confirm an arbitration award must set forth the substance of or attach the arbitration agreement, include the name of the arbitrator, and attach a copy of the award and the written opinion of the arbitrator, if any. (Code Civ. Pro. § 1285.4.) The petition must be served no earlier than 10 days, but no later than 4 years, after service of the award on the petitioner. (Code Civ. Pro. §§ 1288, 1288.4.)

The petition, written notice of the time and place of the hearing on the petition, and any other papers upon which the petition is based must be served in the manner provided in the arbitration agreement for service of such petition and notice. (Code Civ. Pro. § 1290.4(a).) If the arbitration agreement does not specify the required manner of service and the person being served has not yet appeared in the proceeding and has not yet previously been served, then service of the petition within the State must be made in the same manner as service of a summons and complaint pursuant to Code of Civil Procedure, section 415.10 et seq. (Code Civ. Pro. § 1290.4(b)(1).) At least 10 days' notice of the date set for the hearing on the petition must be given. (Code Civ. Pro. § 1290.2.)

B. Analysis

Petitioner seeks to confirm the arbitration award following binding arbitration between the parties.

The parties arbitrated the matter on November 10-12, 2025, before the Hon. Elizabeth R. Feffer (Ret.). (See Petition, Exh. 8(c).) On June 1, 2026, the arbitrator issued an award in Petitioner's favor, in the amount of \$1,890,750.00, \$ 105,117.81, in prejudgment interest, and \$70,138.20 in costs. (Id., p. 33.) The arbitrator served the award on the parties electronically and via certified mail on June 1, 2026. (Id., Proof of Service.) On June 15, 2026, Petitioner filed this motion to confirm the award.

Here, Petitioner has provided the arbitration agreement, the name of the arbitrator, and the Arbitration Award. (Code Civ. Pro. § 1285.4.) The petition has also been served no earlier than 10 days, but no later than 4 years, after service of the award on the petitioner. (Code Civ. Pro. §§ 1288, 1288.4.)

In opposition, Respondent argues that, "[s]ince the Award has already been satisfied, this Petition is moot." (Opp. at p. 3:16-17.) However, such argument was rejected in *Pacific Law Group: USA v. Gibson* (1992) 6 Cal.App.4th 577. There, plaintiff argued "that only plaintiffs' awards may be confirmed and, then, only to the extent those awards have not been satisfied." (Id. at p. 580.) The court disagreed holding that "it is clear that all arbitration awards, including defense awards which have been satisfied, are subject to confirmation." (Ibid.) Therefore, here, Petitioner's award, even if it has been satisfied, is still subject to confirmation.

Accordingly, Petitioner's Petition to Confirm Arbitration Award is GRANTED. [FN 1]

IT IS SO ORDERED.

Dated: July 31, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Once a judgment is entered, the Petitioner, at the very minimum, would likely be required to file at least a Partial Satisfaction of Judgment, if not a Full Satisfaction of Judgment, depending on the facts and circumstances of any prior payment(s), agreements, etc. between the parties. See, CCP §724.010 et seq.

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.